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Uluguru Mountains, Morogoro Region, Tanzania

Section Title(S): SEXUAL LICENSE

SEXUAL LICENSE

There is general agreement among the Luguru that in former times a male, married or single, was permitted to have sex relations with his unmarried watani. While the practice is frowned on today in some circles, it is admitted that according to customary law a charge of adultery could never be validated in such a case.

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The greatest amount of sexual license is permitted between unmarried cross-cousins, and an affair between these two is rarely condemned except by acculturated Christians. Cross-cousins are always considered watani and may be referred to as such whether or not their clans observe the utani relationship. When a young man was visiting his uncle no one questioned the propriety of his being left alone with a female cross-cousin while the adults went to the field. Thus sexual play often began at an early age and could result in sex relations prior to puberty. Cross-cousins may refer to each other as husband and wife, as this is the most desirable form of preferential marriage; and if a girl had sex relations with her "husband" it was not cause for serious concern. A Luguru may tell his nephew at night to "go call your wife," thus giving his sanction to premarital sex relations between his heir and his daughter. In short, little value is placed on virginity at time of marriage except by the educated Christian community.

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A married or older man is more likely to seek out a widow or divorcee for extra-marital sex. For a husband this is most likely to occur while his wife is nursing a child,⁵ for the Luguru follow the common African pattern of females abstaining from sex relations for approximately 18 months following the birth of a child if the child lives. One factor that favors an affair with a mtani is that a charge of adultery would not be brought against the man by the relatives of the woman. Moreover, his wife is less likely to create trouble if he seeks the company of a mtani.

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The **joking** between watani that permits highly suggestive or obscene comments thus may be utilized to ascertain the availability of a mtani as a sexual partner. While the fiction exists that a male should be the aggressor in sexual matters, under these circumstances it is possible for the female to initiate a verbal exchange that may lead to a proposition.⁶ It is expected that a young man will give a gift of a small amount of money or trinkets to a girl with whom he is having an affair, and an adult male who regularly visited a divorced or widowed woman is expected to be generous and contribute to her support, either in produce, cloth, or money. Such a woman would be referred **1320** to as *hawala*, which the Luguru use to mean paramour or concubine, rather than *malaya* or prostitute. The latter term is used today in reference to women the Luguru claim come predominantly from other tribes, particularly the Haya, who make their living entirely in this manner. The **joking** aspect of utani entered into a situation in former times where a man would permanently cohabit with a mtani. It was reported that he could pay the bridewealth with a handful of grass, but when he left he should leave her a house.

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⁵ It is believed that a Luguru husband should abstain from sex relations during the latter stages of pregnancy and first few months following birth, even with another wife, lest he bring harm or death to the child. Even after this the child may cry if the father visits another woman and then handles the child. To avoid the crying a man may use a special medicine on his hands or bring the child a gift

such as a bracelet. Needless to say, a husband that refuses to tend his child, or a child that cries a great deal, can arouse the suspicion of a wife.

⁶ While **jokin** in this paper is discussed primarily in terms of masculine behavior, the same privileges are extended to females. There is also a limitation that should be noted on the extent that a male may become involved with female watani. It is considered incest (*fuzimoto* in Luguru) to have sex relations with someone from your own clan, and while polygyny is permitted, one may not be married concurrently to two women from the same clan. This would also be classed as *fuzimoto* because "it would be mixing the blood." The same taboo applies to a lesser degree to sex relations with watani in that a man should not have sex relations with uterine sisters, or even offspring of the same father. It would not be condemned if he had sex relations with watani from the same clan if they belonged to different lineages or extended families.

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